



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 13TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 5TH DAY OF APRIL, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. WILLIAM CARLO R. AVILA
HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

COUN. FELIX C. ABAÑO - On Official Leave of Absence (FL)

Resolution No. 122-2021

RESOLUTION ADOPTING AN ORDINANCE INSTITUTIONALIZING, PROMOTING AND DEVELOPING ORGANIC AGRICULTURE IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, PROVIDING FUNDS THEREFOR AND FOR OTHER PURPOSES OTHERWISE KNOWN AS THE "2021 ORGANIC AGRICULTURAL ORDINANCE OF DAET, CAMARINES NORTE"

WHEREAS, with the enactment and approval of the Republic Act 10068, an Act Providing for the Development and Promotion of Organic Agriculture in the Philippines and for the other purposes otherwise known as Organic Agriculture Act of 2010 as amended by Republic Act No. 11511, it is the policy of the state to promote, promulgate, develop further and implement the practice of organic agriculture in the Philippines that will cumulatively condition and enrich the fertility of the soil, increase farm productivity, reduce pollution and destruction of environment, prevent depletion of natural resources, further protect the health of farmers, consumers, and the general public and save on imported farm inputs and promote food self-sufficiency;

WHEREAS, Section 16 of the amended Organic Agriculture Act provides that every Municipal Mayor shall, insofar as practicable form a Municipal Technical Committee, and which shall, in coordination with the assistance of the Bureau of Agriculture and Fisheries Product Standard (BAFPS) and the Department of Agriculture-Regional Field Office (DA-RFO) implement activities in line with the National Organic Agriculture Program (NOAP) within the Municipality;

WHEREAS, as provided by the Joint Memorandum Circular No. 1 Series of 2018 of Department of the Interior and Local Government (DILG) and Department of Agriculture (DA), mandated the roles and responsibilities of the Local Government Units (LGU's) in the implementation of National Organic Agriculture Program;

WHEREAS, educational and awareness campaign among consumers on the benefit of consuming organic products to boost local production of organic food and non-

food products, as well as the adoption of organic agricultural system as a viable alternative shall be undertaken;

WHEREAS, there is a need to intensify efforts for the implementation of the law to ensure food security through agricultural production systems and techniques that are ecologically viable, technically feasible and socially acceptable;

NOW THEREFORE, after due deliberation, on motion of Councilor Tomasito Santiago C. Turingan, with Councilors Apolonio B. Panong, Nestor F. Dalida and Ma. Eliza H. Llovit as co-movants, seconded by Councilors Rossano C. Valencia, Marlon T. Bandelaria and Pedro S. Musa;

BE IT RESOLVED, as it is hereby resolved to adopt:

MUNICIPAL ORDINANCE NO. 407-2021

AN ORDINANCE INSTITUTIONALIZING, PROMOTING AND DEVELOPING ORGANIC AGRICULTURE IN THE MUNICIPALITY OF DAET, CAMARINES NORTE, PROVIDING FUNDS THEREFOR AND FOR OTHER PURPOSES OTHERWISE KNOWN AS THE "2021 ORGANIC AGRICULTURAL ORDINANCE OF DAET, CAMARINES NORTE"

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, Camarines Norte, in session assembled that:

CHAPTER I – TITLE, POLICY, PRINCIPLES AND DEFINITIONS

SECTION 1. TITLE - This Ordinance shall be known and cited as the **"2021 Organic Agriculture Ordinance of Daet, Camarines Norte"**.

SECTION 2. DECLARATION OF POLICY - It is the duty of the local government to protect life and advance the rights of all citizens to food sufficiency, sovereignty and safety, sustainable livelihood and social equity in accord with the rhythm and harmony of nature. Toward this end, the local government with mainstream organic agriculture as a main agriculture practice in the municipality of Daet, Camarines Norte.

SECTION 3. DECLARATION OF PRINCIPLES – The practice of organic agriculture shall adhere to the following principles to guide the implementation of this Ordinance:

- a. The promotion and enhancement of the conservation and sustainable use of agricultural biodiversity shall prevail over any other activity on the agriculture sector;
- b. The empowerment of all small and marginalized farmers in the agriculture areas of the municipality is a priority which will include the value chain for organic agricultural products;
- c. The implementation of a strategy for mitigation and adaptation to climate change is an urgent policy matter that needs to be integrated in all policies in all sectors;
- d. While unifying the initiatives and effort of all government agencies and instrumentalities in agricultural the enhancement of the municipality's poverty reduction strategy should not be lost in sight;



- e. Organic agriculture is a contributor to the municipality's economy and the attainment of food security, ecological sustainability and the well-being of all Daeteños;
- f. Organic agriculture cannot co-exist with genetically-modified crops chemically produced crops and related organism both living and non-living;
- g. Organic agriculture is multi-functional and in this sense all existing policies of the government on agriculture should take this into account, and;
- h. The integrity of organic product through the approved organic certification process and organic production handling and processing standards should be ensured.

SECTION 4. DEFINITION OF TERMS – The following words and phrases, whenever used in this Ordinance, shall be construed as defined in this section, to wit:

- a. **Biopesticides** – are naturally occurring substances and microorganisms that control pests;
- b. **Buffer Zones** – are defined areas on boundary of an organic farm that has land use controls and allow only activities compatible with the protection of the organic farm. It serves as a barrier that surrounds or separates an organic farm from other traditional or conventional farms where plants are not designated as organic. The area of the buffer zones shall be determined in the Implementing Rules and Regulations depending on the total situation on the ground;
- c. **Consumer Groups** – are organized consumer group patronizing and advocating organic products;
- d. **Conversion** – is the process of transforming a traditional or conventional farm into an organic farm for period of three (3) to five (5) years;
- e. **Food Security** – is the ability of the individual, household and community to produce and/or access/acquire appropriate, abundant, nutritious and safe food on a regular basis using socially acceptable means;
- f. **Organic Agriculture** – is a production system that sustains the health of soils, ecosystems and people. It relies on ecological processes, biodiversity and cycles adapted to local conditions, rather than the use of inputs with adverse effects. Organic agriculture combines, innovation and science to benefit the shared environment and promote fair relationships and good quality of life for all involved International Federation of Organic Agriculture Movements (IFOAM);
- g. **Organic Center** – is a demonstration farm with the following goals:
 - 1.) Establish a strategic venue for consumer education, information and communication for sustainable healthy lifestyle;
 - 2.) Design as a showcase for organic products and farm technologies;
 - 3.) Develop holistic and sustainable technology training programs;
 - 4.) Formulate farm-based farmer coordinated applies research program; and
 - 5.) Promote environmental economic values in enterprise development.
- h. **Small Farmers-** are marginal and sub-marginal farm household and/or cultivating not more than three (3) hectares;



- i. **Participatory Guarantee System (PGS)** – PGS shall be the mechanism by which small farmers/fisherfolks, their farms/association/cooperatives shall be certified as engaged in organic agriculture and as a producers of organic agriculture products. Producers are certified based on active participation of stakeholders, build on trust, social networks and knowledge exchange. It serves as a tool for improving socio-economic and ecological conditions by encouraging small-scale production and processing. The product certified through the PGS shall be traded only in domestic market unless covered by an international certification or a mutual recognition agreement;
- j. **Ex-Situ mechanism** – it is a technique of conversion or preservation of all levels of biological diversity outside their natural habitats.

CHAPTER II – STRATEGIES

SECTION 5. ORGANIC AGRICULTURAL ZONES- For the effective implementation of this Ordinance, there are hereby set aside agriculture zones that will be protected from encroachment and contamination of using chemical-based farm inputs, mining, including contamination of genetically engineered crops and other similar activities.

5.1. These zones shall be organized according to ecological districts based on existing categories of land tenure instruments and arrangements such as but not limited to, the ancestral domain, the protected area, the agrarian reform communities, the community-based forest management zones, and such similar instruments and arrangements, including the coastal and marine zones.

5.2. These zones shall be set up according to the following practitioners;

- a. Presence of actual organic agricultural practitioners;
- b. Presence of natural or man-made water formations, including areas covered by irrigation and similar facilities;
- c. Identified buffer zone to shield organic agriculture from other land uses that impact in the integrity of the practice of organic agriculture;
- d. Urban Organic Agriculture; and
- e. Areas suited for agricultural production as defined in the Municipality of Daet, Camarines Norte Comprehensive Land Use Plan (CLUP).

SECTION 6. ORGANIC CENTERS. – The Municipal Government of Daet, Camarines Norte through the Municipal Agriculture Office (MAO), shall establish, recognize and/support Organic Technology Demonstration and Training Farm including those initiated by the private sector that will promote, market, and develop organic agriculture.

6.1. The LGU of Daet, Camarines Norte shall appropriate substantial amount of every year which includes establishment of structure/housing facilities, repair and maintenance, provision of stocks and training expenses to its owned Organic Technology Demonstration and Training Farm. Municipal Agriculture Office may also utilize the Municipal Food Terminal and or KADIWA retail outlets established for the purpose of marketing organic products.

6.2. The Municipal Agriculture Office may also recognize or support market centers which are established for the purpose of marketing organic products.

SECTION 7. CONSERVATION OF INDIGENOUS FARM PRACTICES – Measures shall be established, by the farming communities, including Indigenous People's Communities (IPC's), to conserve and protect indigenous knowledge relating to organic agriculture, including those that relate to seed conservation and propagation and the various ways in which on-farm and ex-situ mechanisms are established and sustained.



SECTION 8. ORGANIC GENE/SEED BANK – The Municipal Government of Daet, through the Municipal Agriculture Office, in coordination with Non-Government Organizations (NGOs), international organizations and other appropriate agencies shall establish an Organic Seed/Gene Bank which will produce and supply organic, endemic or indigenous seeds to farmers.

SECTION 9. SUPPORT SERVICE TO ORGANIC FARMERS - The Municipal Government of Daet, Camarines Norte shall ensure support to organic farmers who wish to engage in organic agriculture, such as training, production, marketing and branding, including financial management and accounting, among other necessary skills to develop an organic agriculture product that will secure a market niche, including the practice of fair trade.

Support services shall also be primarily extended to small and marginalized farmers and women's groups including the promotion, enhancement and fulfillment of their rights as defined in national laws.

SECTION 10. ACCESS TO CREDIT FOR SMALL AND ORGANIC FARMERS - Small and organic farmers, through the assistance of the Municipal Agriculture Office, shall have access to credit facility and financial services through organized groups of small farmers preferably those association/cooperative registered with the Department of Agriculture or Municipal Cooperative Office (MCO) as the case maybe.

SECTION 11. BIOLOGICAL AND BOTANICAL CONTROL – Organic Farmers shall practice and utilize biological and botanical method, which relies on predation, parasitism, herbivory or other natural mechanisms in the control of pests and diseases in their organic farm.

The Municipal Government of Daet, Camarines Norte shall provide support to the Municipal Agriculture Office for the research and development of biological and botanical control.

CHAPTER III – IMPLEMENTATION MECHANISMS

SECTION 12. IMPLEMENTATION MECHANISMS – The Municipal Government of Daet, Camarines Norte through the Municipal Agriculture Office, shall insure the implementation of this ordinance guided by the principles of organic value chain. It shall ensure the marketing of organic products by providing centers for selling, transport and other necessary services. It shall also ensure that organic products have certified organic branding in accordance with the Philippine National Standards.

SECTION 13. ORGANIC AGRICULTURE MANAGEMENT COUNCIL - The Municipal Government may institute the formation of an Organic Agriculture Management Council, headed by the Municipal Mayor as Chairperson and Municipal Agriculturist as Co-Chairperson that will assist in the implementation of the Ordinance and the formulation of an Organic Agriculture Plan for Daet, Camarines Norte. The Council, to be composed of appropriate national government agencies, non-government organizations (NGOs), People's Organization (POs), academe and such other appropriate offices engaged in or advocating organic agriculture.

The Organic Agriculture Management Council shall have the following functions:

1. Identify and recommend organic agriculture zones;
2. Adopt the existing national standards for the accreditation of organic agriculture practitioners which may take into account second party certification systems and farmers' guarantee systems;



3. Develop incentive mechanism for the organic agriculture sector, in collaboration with local government agencies under the Municipal Budget Office which may include, but not limited to subsidies especially with farming areas that do not exceed (3) hectare limit, and the necessary crop insurance and other support system of agriculture sector;
4. Promote composting as source of organic fertilizer/conditioner for organic farming;
5. Formulate policies, plans, projects and programs to develop and promote organic farming;
6. Encourage backyard organic farming to all barangays; and
7. Perform such other functions as may be necessary for the realization of the organic agriculture of the municipality.

In the absence of the establishment of the said Council, the Municipal Agriculture Office shall perform the above-mentioned functions on collaborations with other government agencies, NGOs, POs, academe and other appropriate offices.

SECTION 14. MUNICIPAL PARTICIPATORY GUARANTEED SYSTEM GROUP

– The Municipal PGS group shall be composed of the following: 1. One (1) representative for each core PGS group in the municipality, 2. One (1) representative from a regional agriculture State University or College (SUC) or local private agricultural institution: Provided that there should be at least two (2) core PGS groups in the municipality before a municipal PGS group can be established.

The Municipal PGS group shall conduct its business and affairs based on the majority decision of the members present after having a secured quorum and shall have the following powers, duties and responsibilities, to wit:

1. Together with BAFS, develop or update and implement the PGS, as provided in the Republic Act No. 11511;
2. Ensure that compliant farmer members continue to comply with all the requirements of the applicable PNS for organic agriculture and relevant regulatory requirements;
3. Maintain a registry of core PGS groups operating within its area of jurisdiction, which shall be forwarded to the Bureau of Agriculture and Fishery Standard (BAFS) on year end for the latter's national database;
4. Together with the Organic Certifying Body (OCB) involved in the inspection and certification activity, and in coordination with the BAFS, issue participatory organic certificate and the "PGS guaranteed organic" label/mark to compliant small farmer/fisherfolk and/or their farm/association/cooperative; and
5. Submit regularly to the BAFS a list of certified small farmer/fisherfolk their farm/association/cooperative.

In case a municipal PGS groups has not yet to be established, the BAFS, in coordination with the Municipal Agriculture Office shall assumed the powers, duties and responsibilities of this group.

SECTION 15. APPROPRIATION. – The Municipal Government of Daet, Camarines Norte shall appropriate the amount of One Million Pesos (P 1,000,000.00) to ensure the



implementation of this Ordinance and to support the organic agriculture activities of the municipality.

SECTION 16. INCENTIVES TO FARMERS, SCHOOLS AND BARANGAYS - The LGU of Daet, Camarines Norte shall give incentives, awards and financial support to farmers, schools and barangay local government units which pursue, promote and practice organic farming. The Municipal Agriculture Office shall formulate guidelines for developing incentive programs, awards systems and/or financial support.

SECTION 17. STANDARD-SETTING - The Municipal Mayor, through the Municipal Agriculture Office or the Organic Agriculture Management Council or the Participatory Guarantee System (PGS), in case it is established, shall formulate an organic agriculture standard appropriate for Daet Small Farmers.

The standard to be formulated by the municipality shall be anchored on the utilization of biodegradable waste as a resource for organic agriculture system.

SECTION 18. CAPACITY-BUILDING - To sustain and broaden the base for the implementation of this Ordinance, there is hereby adapted a continuous effort, funded by not more than ten percent (10%) from the budget set aside for organic agriculture as identified in Section 15 of this Ordinance, for capacity-building and training, including the accreditation of institutions for standard testing and verification. Measures shall also be adopted to encourage integration of organic agriculture in the primary, secondary and tertiary school curricula.

SECTION 19. RESEARCH AND DEVELOPMENT - A Master Plan for Research and Development on Organic Agriculture shall be created by the Municipal Agriculture Office in coordination with the Department of Agriculture - Regional Field Unit 5 that will be funded by the municipality by at least 10 percent (10%) of the budget set aside for organic agriculture as identified in Section 15 of this Ordinance. The Master Plan shall be regularly updated in consultation with different sectors such as, but not limited to, farmers, private entities, NGOs and LGUs.

SECTION 20. PROMOTION OF URBAN ORGANIC AGRICULTURE – The Municipal Agriculture Office shall promote urban organic agriculture even in urban areas utilizing new technologies and taking advantage of ecological solid waste.

SECTION 21. IMPLEMENTING RULES AND REGULATIONS – The Municipal Mayor is hereby authorized to create a joint executive-legislative committee to formulate the Implementing Rules and Regulations of this Ordinance upon its effectivity.

SECTION 22. SEPARABILITY CLAUSE - If any part of this Ordinance is declared unconstitutional, the remaining parts unaffected thereby shall continue to remain valid and in effect.

SECTION 23. REPEALING CLAUSE - All ordinances, executive orders, rules and regulations of parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 24. EFFECTIVITY CLAUSE - This Ordinance shall take effect upon approval.

ENACTED.



RESOLVED FURTHER, to furnish copies hereof, the Municipal Agriculture Office, and all other concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. TOMASITO SANTIAGO C. TURINGAN
Author

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: APR 15 2021